

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 11, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01486

DEWAR v. GOGH DELIVERY, LLC

**(UNOPPOSED) MOTION FOR FINAL APPROVAL OF CLASS ACTION AND
PAGA SETTLEMENT**

Based on the pleadings submitted, the settlement is entitled to a presumption of fairness and no evidence having been presented to overcome the presumption, the motion for final approval is granted. Plaintiff shall submit a proposed order and judgment, and the court will set a non-appearance hearing date to confirm the distribution.

No. 23CV02604

SANDEN v. SANDEN

**(UNOPPOSED) PLAINTIFF’S MOTION FOR SUMMARY ADJUDICATION
FOR PARTITION OF REAL PROPERTY**

The unopposed motion is granted. An interlocutory judgment for partition for sale of the subject property (711 Hester Creek Road, Los Gatos, California, Santa Cruz County APN 097-231-50) will be entered, and the Court appoints Brandon J. Anand, Esq. as partition referee. Plaintiff shall submit forms of order and judgment for the Court’s signature.

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Plaintiff Chad Sanden seeks the partition of the subject property. He owns the property along with his father, John Sanden and John's wife, Cathy Johnson. Chad and John each own an undivided 50% as tenants in common and John's wife has a community property interest in one half.

John and Cathy live on the property. The complaint contains a long history of Chad and his deceased wife Justine bailing John and Cathy out of many financial hardships, which culminated in an agreement (memorialized in a December 28, 2017 deed) that Chad and John would own the property as joint tenants as their separate property; both wives executed spousal consents to joint tenancy specifically to relinquish their interests in the property. This agreement was made to ensure that Chad would be reimbursed for his many years of financial support and property upgrades at John's death. Chad estimates he has spent over \$450,000.00 since 2012 on encumbrances and upgrades to the property.

Without Chad's knowledge or consent, John quitclaimed his portion to the trust he has with Cathy on June 16, 2023. This resulted in a severance of the bargained for agreement with Chad and a tenancy in common, rather than a joint tenancy. Plaintiff attempted to communicate and work with defendants to resolve the dispute, specifically to record a rescission deed to rescind the June 2023 deed, to no avail.

The Court finds plaintiff has met his burden of production to establish that no triable issue of fact exists regarding his individual right to partition and he is entitled to an interlocutory judgment partitioning the property. Despite proper service on defendants, no opposition was filed. Therefore, the Court grants the motion for summary adjudication.

No. 24CV00702

TURNER v. SANTA CRUZ METRO, et al.

PLAINTIFF'S MOTION TO QUASH SUBPOENAS FOR MEDICAL RECORDS

The motion is granted. Each of the 15 subpoenas to plaintiff's medical providers are quashed. The parties are directed to continue to meet and confer to craft requests that are limited to the period of five years prior to the accident to the present and are directly related to plaintiff's claimed injuries.